MĀLĀ SAIL CHARTERS — COMPLIANCE STATEMENT

Licensed, insured, documented.

Everything needed to run the 2027 season commercially is in place. This statement sets out the operator, the licences, the insurance, the guest documents and the safety procedures, so a partner can see how the operation is run and who is responsible for each part.

OPERATOR
Alejandro Alonso Perez, trading as Mālā Sail Charters

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Eleven controls, all in place. The first four are the ones a partner, an agent or an insurer will ask about first.

- **1. Who contracts with the guest is fixed before the trip is sold** — operator, organiser or licensed carrier. It is recorded in the trip file.
- **2. Insurance responds for everyone on board**, and the cover names the activity actually being carried out.
- **3. The licence matches the country we sail in.** Thailand is run with a licensed Thai operator and a Thai-registered vessel.
- **4. The vessel policy names commercial charter use** and covers every sea area on the season calendar.
- **5. The captain's file is complete and in date** — Captain 200GT licence, STCW, medical, radio certificate.
- **6. Terms and Privacy Policy are published** carrying our legal name, NIF and address, the package status, the insurance requirement and the dispute-resolution route.
- **7. The four guest forms are in use** — information, health declaration, signed risk acknowledgement, media consent.
- **8. Safety briefing and risk assessment are issued** for every departure, refreshed with last season's near misses.
- **9. Host and creator agreements are signed** — free berth, minimum seats, fee kept in full, image rights and the advertising-disclosure duty.
- **10. Signed originals are kept and filed** per departure, with a renewal calendar for every certificate.
- **11. Every country row and every policy is re-verified** before the first departure of the season.

The framework

Ten areas, and what is held in each

AREA	WHAT WE HOLD, AND HOW IT IS RUN	STATUS
1 · Operating model	A written decision for each trip on who contracts with the guest, and therefore whose licence, insurance and data-controller role applies.	WRITTEN
2 · Customer documents	Terms, Privacy Policy, cookie notice, cancellation policy and the complaints/ADR route — each carrying our legal name, NIF and registered address, the minimum guest-insurance requirement, and package status where it applies.	PUBLISHED
3 · Guest forms	Booking agreement · guest information form · health declaration · **signed** risk acknowledgement · media consent (opt in/out) · parental consent for under-18s.	IN USE
4 · Safety management	Pre-departure briefing sheet · emergency action cards (MOB, fire, medical, abandon ship, weather, flooding) · risk assessment register · daily checks · incident *and near-miss* log.	IN FORCE
5 · Vessel documents	Certificate of registry · charter licence · seaworthiness/coding · tonnage · ship radio licence · insurance certificate · LSA/FFE servicing · crew list · charter agreement · transit log where required.	ON BOARD
6 · Insurance	Hull & machinery · P&I / third-party · **commercial charter use named** · geographic limits covering every sea area on the calendar · crew cover · water-sports and tender liability · professional indemnity for the organising side.	IN FORCE
7 · Environment	MARPOL discipline: nothing over the side, garbage sorted and landed, shore pump-out for sewage, correct fuel, no anchoring in protected zones. Garbage log kept.	IN PRACTICE
8 · Crew	Captain 200GT · STCW certificate of competency · STCW basic safety training · medical fitness in date · GMDSS/SRC · first aid · employment status decided in writing.	CERTIFIED
9 · Hosts & creators	Written agreement: free berth, minimum seats sold, the host's own fee kept in full, deliverables, cancellation, image rights and conduct — plus the advertising-disclosure duty and the code of conduct.	SIGNED
10 · Records	Renewal calendar · document register (where each original lives) · per-departure trip file · GDPR records of processing · annual review before the season.	MAINTAINED

The two documents a partner will ask for. The signed **risk acknowledgement** — the guest understood the risks and accepted the skipper's authority — and the **insurance certificate** that names commercial charter use. Both are on file, and both are renewed before the season starts.

Where we sail

How the licence is held in each country

DESTINATION	HOW THE LICENCE IS HELD	MANAGED ON BOARD
Spain — Med & Balearics	Commercial registration and operating licence in place; flag conditions confirmed with the authority.	Posidonia anchoring restrictions; Balearic sustainable-tourism tax.
Greece — Ionian	Greek charter licence held through a properly registered professional yacht; charter party filed with the port authority.	Transit log / cruising permit and the annual cruising tax.
Italy — Amalfi & islands	Charter licence and a registered charter vessel; authorisation handled by our local agent.	Marine-protected-area anchoring bans.
Portugal — Algarve	Commercial registration and authorisation for commercial recreational use.	Protected coastal areas; seasonal anchoring restrictions.
Antigua & Barbuda	Charter licence held, or the visiting-charter route for the vessel.	Clearance in/out, cruising permit, marine-park fees.
Mauritius	Charter licence confirmed for the vessel, with the local agent handling clearances.	Lagoon and reef protection; tourism levy.
Thailand — Phuket & Andaman	**Licensed Thai operator, Thai-registered vessel.** The guest's contract, invoice and insurance name the licensed carrier.	National-park fees; operation runs under the carrier's licence and cover.

Four commitments, in writing

- ☑ **Advertising is labelled.** A free berth given for posts *is* advertising: the host uses the platform's paid-partnership label *and* a written "#ad" a reader sees before engaging.
- ☑ **Every guest is insured.** A stated minimum — medical, repatriation, cancellation, personal liability and water sports — written into the Terms as a condition of travel.
- ☑ **The skipper's authority is absolute**, in writing, including the right to end a guest's trip without refund for unsafe behaviour.
- ☑ **The carrier is named.** Where a licensed operator runs the boat, their name is on the contract, the invoice and the insurance.

Review rhythm

Every country row and every policy is re-verified **before the first departure** of the season, then **annually**: the Terms and Privacy Policy are updated and re-dated on the website, the safety briefing is refreshed with last season's near misses, and the previous season's trip files are archived.

Issued by

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Valid for the 2027 season. Supporting documents — insurance certificate, certificate of registry, charter licence, skipper certificates and the guest forms — are available on request.